



JASMUN 2026

International Criminal Court

RULES OF PROCEDURE



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1. General Rules

1.1. Terms

1. **“Delegate”** refers to all participants of the International Criminal Court
2. **“The Presidency”** is the official term used to address the chairs on the International Criminal Court
3. **“The Secretariat”** refer to the group of students from 2 Społeczne Liceum Ogólnokształcące z Oddziałami Międzynarodowymi im. Pawła Jasienicy which is outlined in the general Rules of Procedure
4. **“The Rules of Procedure (RoP)”** is the official document drafted by the President of the General Assembly and the Head of Academics which this document is an annexation of. The RoP entails the general regulations and proceedings of the conference.

1.2. Scope

All regulations outlined here are only in order when the International Criminal Court is in session. During other parts of the conference like the General Assembly the delegates must follow the official rule of procedure. Additionally the delegates must adhere to section 2 of JASMUN 2026 RoP, “Code of Conduct” at all times throughout the conference. Failure to do so may result in punishment or expulsion from the conference in severe cases. However, during the ICC committee being in progress this document takes precedence over the RoP and if this document doesn’t abide with the Rome Statute, then the Rome Statute takes precedence over this document. Also, the President of the General Assembly, Secretary General, Head of Academics reserves the right to amend this document at all times and their words on the matter are final.

1.3. Code of Conduct

The delegates and presidency of the International Criminal Court are all expected to abide by the Code of Conduct section in the “JASMUN 2026 RoP”. This code of conduct is binding all throughout the conference and any violations will be met with appropriate measures by either the Secretariat or the Presidency.

1.4. Quorum

Proceedings may only commence when at least one representative from each counsel is present, and 2 Judges are in the room.

2. Membership

2.1. Judges

Judges are tasked with researching the committee's topic to effectively guide the debates. They should be addressed as “the Chamber,” “the Judges,” or “Your Honours.” Prior to the trial, they are required to review submissions from both the Prosecution and the Defense, deliberating on potential amendments (e.g., legal characterization of charges). Judges must also prepare legal questions for the parties in advance.

During the trial, they must attentively listen to the parties' statements to uncover the deeper truth, ask relevant questions to eliminate speculation, and may examine witnesses (either before or after the Prosecution). Judges are also responsible for addressing any questions (in the form of submissions) raised during the trial, ruling on the admissibility of evidence and witness testimonies, and ultimately agreeing on a verdict. They are obligated to uphold the rights of the accused, as outlined in this document, and must administer justice impartially, free from corruption, greed, or bias.

2.2. Presidency

The Presidency of the International Criminal Court has the final say on committee proceedings, unless the Secretariat is present. They ensure that the Rules of Procedure are being followed throughout the committee session. They reserve the right to ask questions during the Evidence Round and Witness Testimony.

2.3. Counsels

The Prosecution bears the burden of proof, or “onus probandi,” and must **demonstrate the accused's guilt beyond a reasonable doubt**. Prosecutors are required to remain impartial, respect the victims' interests and circumstances, and operate in accordance with the Rome Statute. Before the conference, they must submit their Memorial and List of Evidence, along with a List of Witnesses, to the Presidency.

The Defense represents the accused and is fully accountable for all documents submitted on the defendant's behalf. Their role is to advocate for their client's interests, protect their rights, and either prove innocence or establish reasonable doubt in the Judges' minds. Defense delegates must also submit their Memorials and List of Evidence, as well as a List of Witnesses, prior to the conference.

3. Preparation

3.1. Judges

Opposing counsels must not interrupt or directly interact with each other during procedural matters, which include:

- (a) opening speeches,
- (b) presentation of evidence,
- (c) rebuttal and rejoinder,
- (d) closing statements

Each side will have its own allotted time to present rebuttal arguments following the presentation of evidence. Direct interaction between opposing parties is limited to witness testimonies.

Both the Prosecution and Defense have the right to respond to any document filed by court members. However, responses cannot be filed to documents that are themselves responses or replies.

Participants may only reply to a response with the permission of the Chamber, unless explicitly stated otherwise in these Regulations. Without the Chamber's approval, replies must be restricted to new issues raised in the response that could not have been reasonably anticipated by the replying participant (a reply is defined as a response to a response)

3.2. Memorials

Both the Defense and the Prosecution are required to prepare a single joint Memorial, outlining their primary arguments related to the Case. The Prosecution's Memorial will serve as a document of charges and must include the following elements:

- (a) A factual statement detailing the time and place of the alleged crimes, providing a sufficient legal and factual basis to bring the accused to trial.
- (b) A legal characterization of the facts, aligning them with the crimes defined under Articles of the Rome Statute .

It should be noted that the Judges may revise the document containing charges before the conference begins. If the Chamber decides to alter the legal characterization of the crimes without exceeding the factual basis provided, it may recommend amendments to the document and allow time for adjustments, such as the preparation of new witnesses, if necessary.

The Defense's Memorial should similarly meet the requirements of all court documents but is advised to adopt a response-like approach to counter the Prosecution's statement.

Additionally, each Judge must submit an individual Memorial, referred to as a "Separate Opinion of a Judge." Unlike the Memorials from the opposing sides, these can be more concise and less detailed. They should include background information on the case, details about the accused, the procedural history, and a summary of all charges. It is crucial that these memorials of the judges are unbiased, non-argumentative and factual

3.3. List of Evidence

Each side must also prepare a list of evidence they intend to use to support their arguments in court and submit it to the Presidency before the conference. Evidence may include, but is not limited to, statements from legal scholars, articles from reliable online sources (noting that the Trial Chamber has the authority to challenge a source's credibility), as well as videos or photographs that strengthen their arguments.

To submit evidence to the Presidency, the source, author, and publication date must be provided. For evidence not in English, a certified translation is required. Advocates must prioritize citing primary sources (e.g., the original text of a treaty instead of a news article about it). All evidence must be compiled into a single document, complete with a table of contents.

Given the Model United Nations setting of the conference, it is permitted for the delegates to create their own evidence, provided it remains reasonable and plausible. Each side is limited to submitting no more than three pieces of evidence for the trial.

3.4. Preparation of Witnesses

Each side is required to select witnesses from among the conference participants, including but not limited to Delegates, Chairpersons (excluding the Presidency of the International Criminal Court), and Secretariat members. These fictional Witnesses may include, but are not limited to, victims of the alleged crimes, the defendant, co-perpetrators, legal advisors, and experts in relevant fields. Each witness must be accompanied by a brief introduction explaining their role and relevance to the case. The list of witnesses, along with their descriptions, should be compiled into a single document with a table of contents.

The witness list must be submitted before the conference, alongside the List of Evidence and Memorial, adhering to the same submission deadline. Both sides will be asking the witness question, and also the judges, so you must prepare the witnesses with care, keeping in mind that opposing counsel may attempt to discredit them. It is crucial to select the most suitable individuals and thoroughly prepare them for questioning. It is helpful to provide them with a script so that they know their answers in advance. While, also preparing them with background information and possible questions the other council can ask them.

Due to time constraints, each side may call no more than three witnesses. If a need arises to introduce additional witnesses after the submission deadline, the request must first be discussed with the opposing counsel and the Chamber. If both the Chamber and opposing counsel agree, the Presidency will determine the appropriate procedure for questioning the new witnesses.

4. Trial Procedure

4.1. Order of Proceedings

- a) Solemn Undertaking;
- b) Opening speeches;
- c) Presentation of evidence;
- d) Rebuttal and Rejoinder;
- e) Declaration of Judges;
- f) Cross-examination of Witnesses;
- g) Closing Statements;
- h) Chamber Deliberations;
- i) Presentation of the Verdict - during the General Assembly on Sunday

4.2. Solemn Undertaking

After the official opening of the session by the Presidency all of the Members shall individually take the oaths. Ideally on a holy text if provided.

The Judges shall declare:

“I solemnly undertake that I will perform my duties and exercise my powers as a Judge of the International Criminal Court honorably, faithfully, impartially and conscientiously, and that I will respect the secrecy of deliberations.”

Prosecutors and the Defense both shall declare:

“I solemnly undertake that I will perform my duties and exercise my powers as Prosecutor/Advocate of the International Criminal Court honorably, faithfully, impartially and conscientiously, and that I will respect the confidentiality of investigations and Prosecutions/Defense.”

4.3. Opening Speeches

The Prosecution will deliver their opening speech first, followed by the Defense. The primary aim of these speeches is to present each side's planned arguments to the Judges. While they may reference key sources and legal documents they intend to rely on, they are not required to provide a detailed explanation of every piece of evidence or argument that will be discussed during the proceedings.

Attorneys often draw upon the facts and statements outlined in their Memorials for their opening remarks, but the speech should be crafted as a formal address rather than a mere reading of the document. Each speech is limited to 20 minutes, during which the presenting side should aim to persuasively convey their version of events to the Judges.

The speeches can deviate from strict third-person usage but must maintain a formal tone. Judges and the opposing side are not permitted to ask questions during this stage. Each party may choose who delivers the speech and may divide the speaking time among members, provided there is no cross-talking among presenters.

4.4. Presentation of Evidence

The Presidency will call upon the counsels to present and elaborate on their evidence. The evidence will be presented in the order submitted by the Prosecution and Defense. The Prosecution will firstly present their piece of evidence, following this the Defense will and this alternation will occur throughout the presentation.

When a piece of evidence is called upon the party presenting this evidence needs to elaborate on who wrote this evidence, when, the context behind it and a short summary. Then the party must make their case and state why this piece of evidence is important, valuable and what it prove and its effect on the case. All delegates should have read the evidence prior to its presentation.

Questioning - firstly the opposing side may ask up to seven questions concerning the specific evidence and its presentation. Following this the judges may ask up to 10 questions. The number of questions can be extended under the discretion of the Presidency.

Any issues on a particular piece of evidence may be raised during its period of questioning. The same applies to any motion concerning such evidence.

4.5. Rebuttal and Rejoinder

Both the Counsel of the Defense and the Prosecution shall entertain a 15-minute long rebuttal and rejoinder after all evidence was presented, with the possibility of time extension if appropriate motion is raised (motion to let the delegate finish). The speeches should provide a summary of the arguments the party made during the presentation of evidence and any rebuttal to statements or arguments made by the prosecution.

4.6. Declaration of Judges

After the Rebuttal and Rejoinder the judges will enter into a deliberation. During this period of time all parties are expected to leave the room, except the Presidency. The aim of this is to summarize all arguments presented by both parties and deliberate on their thoughts based on arguments and claims provided.

Also, this discussion serves primarily for the judges to deem which evidence presented by the prosecution and the defense are found admissible and which is inadmissible. If they find a piece of evidence inadmissible they can't take it into consideration when writing the verdict, meaning they can't use it as justification for any decision they make. The evidence will be stricken from the record of the court. Once, they reach consensus the judges present what evidence is admissible and which is inadmissible to the Chamber

4.7. Witness Testimony

Before each witness begins testimony they must give the following solemn undertaking: *"I solemnly declare that I will speak the truth, the whole truth and nothing but the truth and so help me God"*

During this time the party that summons the witness will firstly question the witness. Then the opposing party will question the witness with a maximum of 7 questions, during this time objections may occur. Following this the judges will question the witnesses with a maximum of 10 questions. Both question limits may be extended with the use of the appropriate motion.

4.8. Closing Statement

If no motions or questions arise to the witnesses both parties then deliver a closing speech. This speech summarizes all arguments, witness testimonies, admissible evidence presentations and claims made by the opposing party. They should address each contention brought up by the opposing party, any issue of factual or legal nature relevant to the case and refer to specific recommendations to the Chamber on how they should rule.

With the aim of proving to the court one final time why the judges should rule in favour of such party. No further evidence or arguments can be submitted during the closing speech. Only the judges may ask questions to the closing speech, the maximum being 10.

4.9. Deliberations

At the end of the closing speeches both parties are exempt from the courtroom and now the judges deliberate on a final verdict.

They will discuss on what charges the defendant is guilty or not guilty based on the evidence, legal basis, and argumentation provided by both parties. During these deliberations the judges should begin writing the verdict where they outline their final ruling and the basis behind it.

4.10. Judgement

The judgement is the official final document of the International Criminal Court. The judgment, as a written document, must include a clearly articulated decision on each specific point of the claim, along with the factual and legal reasoning supporting it. If there are multiple charges, the Chamber must deliver a separate decision for each one. Judges who disagree with the majority opinion in the case may draft a dissenting opinion. Alternatively, if they agree with the majority's general stance but wish to highlight particular aspects they believe are misrepresented, they may write a concurring opinion. Both dissenting and concurring opinions will be presented alongside the verdict

5. Legal Provisions

5.1. Points and Motions

All applicable Points to the International Criminal Court at JASMUN 2026 are enclosed below. However, other motions written in the general RoP are also applicable to the International Criminal Court. Listed below are motions which are only applicable to the ICC.

5.1.1. Point of Personal Privilege

The Point of Personal Privilege may be raised by a delegate in a circumstance, when they experience personal discomfort that prevents them from effectively partaking in the debate. This pertains to actions such as going to the bathroom, opening the window etc. The point may not interrupt the current speaker, unless it addresses the coherency of the speech itself, for example a delegate may use the point to request the speaker to repeat or rephrase their point if they did not understand it.

5.1.2. Point of Parliamentary Inquiry

The Point of Parliamentary Inquiry may be raised by a delegate, who wishes for the Chair board to clarify a segment of the Rules of Procedure. The Chair board must provide an answer that is truthful to the Rules of Procedure, and if they are unable to do so, call upon a member of the Secretariat. This point may not interrupt the current speaker.

5.1.3. Point of Order

The Point of Order may be raised by a delegate, when they believe that another delegate, or a Chairperson has acted against the Rules of Procedure. The Chair board may rule upon it, however if the delegate raising the point does not agree with the decision, they might use the Motion to Appeal (this is expanded upon further in the document). This point may interrupt the current speaker.

5.1.4. Motion to exclude the witness

This motion can be raised by the Judges or by the Counsel that opposes the counsel which provided the witness. This can only be raised if the witness shows incompetence in their field and lacks basic knowledge of their role. Thus, providing an unhelpful testimony to the court, which shouldn't be taken into consideration and undertakes the value of the case. Once this motion is raised the judges have the right to a deliberation, during which both counsels must leave the room. It is then subject to procedural voting by the judges.

5.1.5. Motion to challenge the relevance or admissibility of the Evidence

This motion may be introduced before the submission of Evidence by any counsel if the piece of evidence is deemed inadmissible or irrelevant. While, it has been stated in the RoP that the counsels may create their own evidence, extreme fabrication that is taken to a too big extent and is unrealistic can be subject to this motion. Once this motion is raised the judges have the right to a deliberation, during which both counsels must leave the room. It is then subject to procedural voting by the judges

5.1.6. Motion for a recess

This motion can be raised at any time during the court proceedings, with the exception of witness testimonies being in track.

It is used to introduce a short break throughout the session and passes only under the discretion of the Presidency or the Secretariat.

5.2. Objections

During cross examination of witnesses objections can be raised. This can only occur when a counsel is questioning a witness of the opposing counsel, then the opposing counsel can raise objections. Objections may interrupt a speaker, being it a counsel or a witness. Once an objection is raised it falls under the duty of the Presidency to rule whether the objection is “overruled” or “sustained”. If the objection is overruled the opposing counsel may continue with their line of questioning and the witness must answer unless another objection is raised. If the objection is sustained the opposing counsel must rephrase their question or move onto another line of questioning.

1. **Irrelevant** - The assertion or question does not relate to the case, allowing the opposing party to object.
2. **Speculation** - The witness is asked to predict or guess the outcome of an event or answer.
3. **Asked and Answered** - The question has already been posed and addressed by the witness.
4. **Leading Question** - A question suggests its own answer to the witness.
5. **Prejudicial** - A statement or evidence infringes on the personal dignity of individuals in the courtroom.
6. **Hearsay** - A witness shares information they heard from others rather than what they personally know.
7. **Incompetence** - The question requires expertise that the witness does not have.
8. **Badgering the Witness** - The questioner uses aggressive or distressing tactics to force an answer from the witness.
9. **Immaterial** - The evidence or question lacks a logical connection to a significant fact in the case.
10. **Counsel Testifying** - The attorney delivers statements or arguments instead of asking questions and letting the witness answer.
11. **Argumentative** - The attorney embeds their interpretation of the evidence in the question to influence the witness.
12. **Compound Question** - Two or more questions are combined, potentially confusing the witness or court.
13. **Vague** - The question is unclear, making it impossible to provide a specific answer.

5.3. Bias

Throughout the entirety of the court proceedings the judges must remain unbiased towards a) the defendant b) each delegate on each counsel. It is critical that they must also aim to remain impartial during any and all deliberations and must withstand their actions with any personal bias they may hold prior to the conference proceedings. All deliberations must be based on what has been stated in court.

5.4. Right of the Accused

Under the official rules of the International Criminal Court the accused has the right to:

- a) Be defended by a lawyer of their choice
- b) Be present with and helped to understand the Charges in a language they speak c) and fully understand
- c) Have adequate timing and facilities for preparation of their Defense
- d) Be tried without undue delay
- e) Remain silent when unwilling to testify

Subpoint b) does not have to be followed under the regulations of the International Criminal Court of JASNUN 2026. Since, we are unable to have the defendant be here in person. However, the Defense remains to hold the right to call the defendant as a witness to the trial. Nonetheless, in this court it isn't valid for the judges to not rule on case simply because the defendant is not present, as we can't subject him to attend the court sessions that take place throughout the conference.